

Section 1106 defines employee.

The basis of the claim is work place harassment that Plaintiff reported. (Complaint ¶78.) This is based on FEHA. While Plaintiff alleges that there was a violation of local, state or federal laws dealing with safe operations of school busses, she does not identify those laws.

6TH CAUSE OF ACTION - LABOR CODE § 6310

Section 6310 prohibits an employer from discharging or discriminating an employee who has made a complaint regarding employee safety or health, unsafe working conditions or work practices. Plaintiff merely repeats the harassment claims. (Complaint ¶86). She fails to allege unsafe working conditions or work practices.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2601589	DIMARCO VS WEST 8TH STREET TRUST	DEMURRER ON PLAINTIFF'S COMPLAINT WEST 8TH STREET TRUST, WILLIAM O. DOLES, MAXINE DOLES
CVRI2601589	DIMARCO VS WEST 8TH STREET TRUST	MOTION TO STRIKE COMPLAINT ON COMPLAINT FOR OTHER PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT (OVER \$35,000) OF SOPHIA DIMARCO

Tentative Ruling:

Defendants' Demurrer as to the 4th, 6th, and 13th causes of action is overruled; as to the 5th, 7th, and 11th causes of action, it is sustained with leave to amend to amend within 20 days.

Defendants' Motion to Strike punitive damages is denied; as to striking attorneys' fees, it is sustained with leave to amend within 20 days.

In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal. 3d 120, 125). The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal. 4th 666, 672). However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal. 2d 695, 713). Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary allegations appear in the complaint, will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.*

(1981) 123 Cal. App. 3d 593, 606). If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318).

4th Cause of Action for Breach of Contract

The elements for a breach of contract claim are: (1) contract; (2) plaintiff's performance; (3) breach; and (4) damages. (*Wall Street Network, Ltd. v. N. Y. Times Co.* (2008) 164 Cal.App.4th 1171, 1178.)

A rental agreement carries with it an implied covenant of quiet enjoyment. (Civil Code § 1927). The landlord impliedly promises to allow the tenant possession and "quiet enjoyment" of the premises during the contract term and not to, through act or omission, disturb the tenant's possession and beneficial enjoyment of the premises. (*Erlach v. Sierra Asset Servicing, Inc. LLC* (2014) Cal.App.4th 1281, 1299-1300).

Here, the Complaint alleges that in August of 2013, Plaintiff entered into a written rental agreement to lease the property. (Compl. ¶ 93.) She alleges she performed as required including paying her monthly rent. (*Id.* ¶¶ 93, 95.) Defendants allegedly breached the contract by failing to perform – not providing habitable rental units; interfering with Plaintiff's quiet enjoyment; demanding money Defendants are not entitled to. (*Id.* ¶ 96.) As a result of the breaches, Plaintiff has suffered damages. (*Id.* ¶ 97.) These allegations are sufficient to state a cause of action.

Defendants argue that Plaintiff failed to allege the material terms of the rental agreement/lease, identify any provision that was breached, attach the contract, or properly plead its legal effect. They argue that she improperly relies on duplicative allegations of negligence, nuisance, and habitability. However as pled, the requisite elements are present.

5th Cause of Action for Implied Covenant of Good Faith and Fair Dealing

The covenant of good faith and fair dealing is imposed upon each party to a contract. (*Carma Developers (Cal.), Inc. v. Marathon Dev't California, Inc.* (1992) 2 Cal.4th 342, 371). This fundamental covenant prevents the contracting parties from taking actions that will deprive another party of the benefits of the agreement. (*Id.* at 372). This cause of action involves more than a breach of a contractual duty, and amounts to a conscious and deliberate act that unfairly frustrates the agreed common purpose of the contract. (*Bionghi v. Metropolitan Water District* (1999) 70 Cal.App.4th 1358, 1370.)

Here, the Complaint alleges that to the extent that Defendants contend there is no "technical breach" of the contract terms, the actions support this claim. It appears that Plaintiff is pleading this cause of action in the alternative to the breach of contract claim. As currently alleged, nothing new is added to the cause of action. As Defendants point out, if an implied covenant claim relies on the same acts/damages as the breach of contract claim, it is duplicative. (*Careau & Co. v. Security Pac. Bus. Credit, Inc.* (1990) 222 Cal.App.3d 1371, 1392.) What is missing are factual allegations showing some conduct beyond a breach of the contract.

6th Cause of Action for Intentional Infliction of Emotional Distress

The elements of intentional infliction of emotional distress are: (1) extreme and outrageous conduct by the defendant with the intention of causing or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) Conduct must be "so extreme as to exceed all bounds of that usually tolerated in a civilized society." (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal. App. 4th 1228, 1259.)

Here, the Complaint alleges the outrageous conduct consisted of: "knowingly ignoring and refusing to abate dangerous and unhealthy nuisances"; maintaining Plaintiff's unit in an "unsafe, unhealthy, uninhabitable" condition; refusing to make repairs despite Plaintiff's complaints; demanding money they were not entitled to; and violating health and safety codes. (Compl. ¶ 105.) The Complaint also alleges Plaintiff "suffered illness, physical injury, severe mental and emotional distress, anxiety" (*Id.* ¶ 107.)

Defendants argue that the Complaint contains general and conclusory statements but, does not allege any wrongful conduct was so "extreme and outrageous" that it exceeds the bounds of decency and fails to particularize the facts including when or how, etc. However, the Complaint alleges detailed, patent uninhabitable conditions including for instance, defective plumbing that drains slow, frequently causes backup of dirty black sludge water when other tenants use the shared laundry facilities; leaking valves in faucets mold/moisture buildup forming a large stain; electrical issues due to outdated/poorly maintained outlets; and, problems with a gas heater. (*Id.* ¶¶ 29-55.) These detailed factual allegations are incorporated into this cause of action. (*Id.* ¶ 103.) These conditions have existed for years even though Defendants knew about them. (*Id.* ¶¶ 11-13, 105.) Such conditions severely impact a tenant physically, mentally and emotionally. This cause of action is well-pled.

7th Cause of Action for Negligent Infliction of Emotional Distress

There is no tort of negligent infliction of emotional distress, but instead it is a form of negligence. (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 796 n.4.) The elements of NIED are: (1) legal duty to use due care; (2) breach of such duty; (3) damages and injury; (4) cause of the resulting damage or injury. (*Huggins v. Longs Drug Store* (1993) 6 Cal. 4th 124, 129.) Negligent infliction of emotional distress is divided into two claims, direct victim claims or bystander claims. (*Smith v. Pust* (1993) 19 Cal.App.4th 263, 273; see also *Thing v. LaChusa* (1989) 48 Cal.3d 644, 667-668 ["[A] plaintiff may recover damages for emotional distress caused by observing the negligently inflicted injury of a third person if, but only if, said plaintiff: (1) is closely related to the injury victim; (2) is present at the scene of the injury-producing event at the time it occurs and is then aware that it is causing injury to the victim; and (3) as a result suffers serious emotional distress."])

Defendants argue that there are only three factual situations that support a direct victim theory. To the contrary, Plaintiff argues that the relevant inquiry is whether Defendants

owed Plaintiff a duty, which is present here based on the landlord-tenant relationships and accompanying duties of safety, habitability, and maintenance of the premises. The Complaint alleges this cause of action is the same as the 6th cause of action but, without the intent. The pleading lacks allegations of a legal duty, breach, and causation.

11th Cause of Action Negligent Training and Supervision

An employer may be directly liable to a third person for the employer's negligence in hiring or supervising an employee who is incompetent or unfit. (*Delfino v. Agilent Technologies, Inc.* (2006) 145 Cal.App.4th 790, 815.) Thus, negligence liability will be imposed on an employer if it "knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes." (*Id.* at 815 quoting, *Doe v. Capital Cities* (1996) 50 Cal.App.4th 1038, 1054] [internal quotation marks omitted].) The elements of a cause of action for negligent hiring or retention are: (1) a legal duty to use reasonable care; (2) a breach of that duty; (3) proximate or legal cause between the breach and (4) the plaintiff's injury. (*Phillips v. TLC Plumbing, Inc.* (2009) 172 Cal.App.4th 1133, 1139.) Importantly, liability for negligent hiring is limited by basic principles of tort law, including requirements of causation, and there must be a causal connection between the principal's negligent hiring and the injury. (*Id.* at 1140.) Defendants argue there are no factual allegations showing employee unfitness, Defendants' knowledge of the unfitness, or a causal link between a training failure and Plaintiff's damages. In response, Plaintiff argues she should not have to provide the identity of every employee, prior incident, internal decision, and causal detail at the pleading stage. However, the Complaint does contain at least one instance. It is alleged that when Plaintiff reported a shower faucet was leaking, Defendants and their agent sent a plumber to inspect it. (Compl. ¶ 35.) Defendants' agent texted Plaintiff that the shower was not leaking and accused Plaintiff of lying and warned that if she lied again, she would be billed for future service charges. (*Ibid.*) There are other instances. (*Id.* ¶¶ 36, 37, 41.) These allegations are incorporated into the 11th cause of action. Nonetheless, more is required including Defendants' knowledge and a causal link to Plaintiff's damages.

13th Cause of Action for Harassment of Tenants (Civil Code §§ 1940.2 and 1942.5

This statute provides that "[i]t is unlawful for a landlord to do any of the following for the purpose of influencing a tenant to vacate a dwelling" including engaging in conduct that violates various statutes (Penal Code §§ 484 [theft], 518 [extortion]; Civil Code §§ 1927 [use/threaten to use force, or "menacing conduct" that interferes with the tenant's quiet enjoyment of the premises creating an apprehension of harm in a reasonable person], and 1954 [landlord can enter the premises only in specified circumstances, i.e., an emergency].) Civil penalties are recoverable where a tenant prevails. (Civil Code § 1940.2(b).)

Civil Code § 1942.5 allows a landlord to evict periodic tenants for any reason. (Friedman, *et. al.*, CPG: Landlord-Tenant (TRG 2025) § 7:330.) "However, as a matter of public policy, the law protects tenants against "retaliatory eviction" – i.e., actual or constructive eviction" or adverse action intended by the landlord to effectively "punish" tenants for the exercise of their legal rights." (*Id.* citing, *Barela v. Sup. Ct. (Valdez)*

(1981) 30 Cal.3d 244, 249 [a “landlord may normally evict a tenant for any reason or for no reason at all, but he may not evict for an improper reason”]) “Residential tenants have express statutory protection against specified ‘retaliatory’ landlord action, remediable by way of a lawsuit for damages or injunctive relief, and/or an affirmative defense to an unlawful detainer” (*Id.*, citing Civil Code §1942.5, and other authority.) Defendants argue that Plaintiff cannot rely on Civil Code § 1927 unless she alleges facts showing interference with her quiet possession by Defendants. In response, Plaintiff asserts that the Complaint contains numerous instances of repair requests, notice and inadequate responses, hostile communications, accusations, etc., which support an inference of intimidation or pressure to vacate. Notably, the Complaint alleges that Defendants’ actions include “pressuring and intimidating her to vacate” the property. This cause of action is sufficiently alleged.

MOTION TO STRIKE

CCP §435 and §436 authorize a motion to strike, and permit the court to strike out irrelevant, false or improper matter, or “any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (CCP §436.)

Punitive Damages

To set forth a claim for punitive damages, Plaintiffs must allege ultimate facts showing oppression, fraud or malice. (Civil Code §3294.) Mere negligence, even gross negligence is not sufficient to justify an award of punitive damages. (*Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, 894-895; *Moody v. McDonald* (1854) 4 Cal. 297, 299.) The current definitions of “malice” and “oppression” were changed by the 1987 amendments to Civil Code §3294, to incorporate “despicable conduct.” The amendments narrowed the definitions so that punitive damages will only be awarded to punish conduct that is so “vile, base, contemptible, miserable, wretched, or loathsome that it would be looked down on and despised by ordinary decent people.” (*Mock v. Michigan Millers Mutual Ins. Co.* (1992) 4 Cal.App.4th 306, 331.)

Generally, claims for punitive damages must be pleaded with particularity as to the facts constituting the alleged egregious conduct. (*G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29.) However, the court may read the complaint as a whole so that conclusory allegations may be sufficient when read in context with the facts alleged as to the defendant’s wrongful conduct. (*Perkins v. Superior Court (General Tel. Directory Co.)* (1981) 117 Cal.App.3d 1, 6-7.) In addition, “[w]ith respect to a corporate employer, the advance knowledge of conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (CCP § 3294(b).)

Significantly, a warranty of habitability is implied in all residential rental agreements. (*Green v. Sup. Ct.(Sumski)* (1974) 10 Cal.3d 616, 629). The implied warranty imposes upon the landlord the obligation to maintain leased dwellings in habitable condition throughout the term of the lease. (*Peterson v. Sup. Ct. (Banque Paribas)* (1995) 10

Cal.4th 1185, 1204). This implied warranty is a corollary to the landlord's statutory obligation to put the premises "into a condition fit for such [residential] occupation, and repair all subsequent dilapidations thereof, which render it untenable. (Civil Code § 1941).

This is well-settled. (Civil Code § 1941.1 [provides a dwelling is untenable if it "substantially lacks" effective waterproofing/weather protection; plumbing or gas facilities; a hot/cold water supply; heating; electrical lighting; building and grounds that are clean, sanitary, and free from debris, filth, garbage, rodents and vermin, etc., which must be maintained in good working order and conform to all applicable laws]; *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 913 [allegations that Civil Code § 1941.1 among other laws, impose a statutory duty on landlords to maintain the premises in a safe and habitable condition, are sufficient to survive demurrer.] A warranty of habitability is implied "in all residential leases *as a matter of law*." (*Stoiber, supra*.) (emphasis added.)

The Complaint contains numerous allegations of wrongful conduct in connection with allegations of oppression, fraud, and malice. (see e.g., Compl. ¶¶ 53-60; 71, 74, 83.) Thus, punitive damages are sufficiently alleged. When the Complaint is read as a whole, the allegations are sufficient to allege punitive damages. In addition, Defendants are not corporate entities. Nonetheless, there are allegations that the alleged conduct occurred with their knowledge, approval, authority, and direct participation. (see e.g., *Id.* ¶¶ 1-2, 17.)

Attorneys' Fees

Defendants argue that Plaintiff seeks attorneys' fees under Civil Code § 1940.2 but that statute does not allow for such recovery and she has not cited to any contractual provision or statutory authority to support this claim.

Plaintiff argues she is entitled to attorneys' fees pursuant to Civil Code §§ 1940.2 and 1942.5. However, she concedes that Civil Code § 1940.2 does not independently authorize attorneys' fees. And, as to Civil Code § 1942.5, attorneys' fees are authorized for retaliatory eviction, which has not been alleged.